

5th Legislature



Enactment No. 24

To make a lawful act granting authority to the Chickasaw Tax Commission to oversee, control and regulate the authorities granted herein, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

July 15, 1988

Mr. Joe Kent ABBOTT introduced the following bill; which was reported by the Business and Economic Development Committee

A BILL

To establish legal authority and to specify provisions for the operation of the Chickasaw Tax Commission.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Taxing Authority Act of 1988."

SEC. 2. The Legislature finds that--

(1) Since the adoption of Enactment No. 6, which created the Chickasaw Tax Commission on June 21, 1985, no specific duties or authorities have been granted the commission by the legislature;

(2) Such authorities are now necessary for the full operation and potential of the government of the Chickasaw Nation.

SEC. 3. For the purpose of this Act--

(1) "Tax commission" or "Commission" means the Chickasaw Tax Commission, as defined herein;

(2) "Tax" means a compulsory payment levied on income, property value, sales price or on other items of value or goods, or products, or services, for the support of the government of the Chickasaw Nation;

(3) "Tribal Legislature" or "Legislature" means the law-making body of the Chickasaw Nation

Tribal Government, which is the recognized governing body of the tribe, possessing plenary power over the people, land and property within the exterior boundaries of the Chickasaw Nation;

(4) "Chickasaw Nation" means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, adopted August 27, 1983, being duly recognized by the Secretary of the Interior of the United States of America and other agencies of the United States of America and other governments, as a self-governing, sovereign government; sometimes hereinafter referred to as "tribe."

SEC. 4. The basis for authority of this Act is Article VII, Section 4 of the Constitution of the Chickasaw Nation, wherein the Tribal Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

- (a) grants specific and general powers and authorities to the Chickasaw Tax Commission to collect those tribal-levied taxes, fees and licenses assigned in this or previous or future legislation;
- (b) grants powers of apportionment and allocation of revenues which have been earmarked to various tribal agencies and/or programs as determined by the Governor and the Legislature;
- (c) grants powers of enforcement and the administration of tribal tax laws, rules and regulations;
- (d) grants the authority to subpoena witnesses and records, to administer oaths and to render decisions appealable directly and only to the Tribal Court of the Chickasaw Nation;
- (e) grants the authority to devise the organizational make-up of the staff of the tax agency, including divisions thereof.

SEC. 5. The Chickasaw Tax Commission shall be comprised of:

- (a) Three members, each of whom shall be appointed by the Governor of the Chickasaw Nation with the advice and consent of the Legislature, with the following stipulations:
 - (1) A minimum of two of the three members shall be of Chickasaw descent;
 - (2) All members shall be residents of the Chickasaw Nation;

(3) Terms of office for each commissioner shall be for four years. For the first members of the Commission who shall serve under the terms of this act, a drawing of lots shall be conducted at the first official meeting of the Commission to determine, among themselves, which shall serve a four-year term, a three-year term and a two-year term. Thereafter, the Governor shall appoint each commissioner to a four-year term, subject to the conditions contained herein;

(4) Members shall serve their terms of office free from political influence from any branch of the tribal government and may be removed only for cause and in a manner provided by law.

SEC. 6. The Chickasaw Tax Commission shall be empowered with all necessary powers of control over all such entities as would normally fall under the purview of such Commission, or of those entities over which specific control is granted by the Legislature.

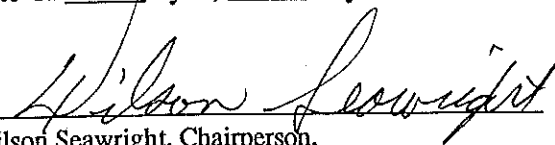
SEC. 7. At its first meeting, the Commission shall, in addition to other requirements contained herein:

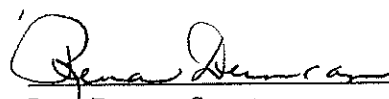
- (a) Review potential areas of taxation which would prove beneficial to the Chickasaw Nation;
- (b) Compile a list of such areas for submission to the Legislature within 90 days of the meeting date;
- (c) Devise an operational structure for itself and for any staffing requirements it may find necessary to the fulfillment of the duties and obligations contained herein, and present a draft of this plan to the Legislature within 120 days of the meeting date.

SEC. 8. The Chickasaw Tax Commission shall exercise only that authority granted herein, but may make additional recommendations to the Legislature at any time it deems proper.

SEC. 9. Any existing legislation which conflicts with this act is hereby repealed.

Executed in regular session of the Chickasaw Tribal Legislature at Ada, Oklahoma, on July 15, 1988, by a vote of 13 ayes, 0 nays and 0 abstentions.


Wilson Seawright, Chairperson,
Chickasaw Tribal Legislature


Rena Duncan, Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor, the Chickasaw Nation

Date: JUL 19 1988